

waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779,784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court finds that failure to timely oppose this demurrer by any party is deemed to consent to the sustaining of this demurrer without leave to amend.

Ruling

Chevron Defendant's Demurrer to the Complaint in *Travis Laster et al v. Syngenta AG, Et. Al* is **sustained** without leave to amend. Chevron Defendants shall prepare a proposed order conforming to this ruling and e-file with the Court no later than ten (10) days from the date of the hearing. No appearance is required at the hearing on March 11, 2026.

Discovery Law & Motion

19. 9:01 AM CASE NUMBER: C24-03380
CASE NAME: GREGORY SMITH VS. FCA US LLC
***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFFS FURTHER RESPONSES TO**
DEFENDANT FCA US LLC'S SPECIAL INTERROGATORIES, SET ONE
FILED BY: FCA US LLC
TENTATIVE RULING:

Defendant and moving party, FCA US LLC, **vacated** this motion on February 26, 2026. No appearance is required at the hearing on March 11, 2026.

20. 9:01 AM CASE NUMBER: C24-02490
CASE NAME: SCOTT DINSDALE VS. CARDIGAN, INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL THE DEPOSITION OF DEFENDANT CARDIGAN,**
INC.'S EMPLOYEE JHOSELIN LOPEZ CISNEROS
FILED BY: DINSDALE, SCOTT A.
TENTATIVE RULING:

Summary

Plaintiff Scott A. Dinsdale ("Plaintiff")'s Motion to Compel the Deposition of Defendant Cardigan, Inc.'s employee, Jhosselin Lopez Cisneros, is **granted** as set forth herein.

Furthermore, on the Court's own motion, the Court **vacates** the following discovery hearings scheduled on the following dates and refers them to a discovery referee to be jointly appointed by the Parties, as set forth herein:

1. April 15, 2026: Plaintiff's Motion to Compel Further Responses from Defendant Cardigan Inc. to Form Interrogatories, Set One.
2. April 15, 2026: Plaintiff's Motion to Compel Further Responses from Defendant Cardigan, Inc. to Form Interrogatories, Set Two.
3. April 15, 2026: Plaintiff's Motion to Compel Further Responses from Defendant Cardigan, Inc. to Form Interrogatories, Set Three.

4. April 22, 2026: Plaintiff's Motion to Compel Further Responses from Defendant Cardigan, Inc. to Request for Production of Documents, Set One
5. April 22, 2026: Plaintiff's Motion to Compel Further Responses from Defendant Cardigan, Inc. to Special Interrogatories, Set One.

Background

On August 26, 2025, Plaintiff filed a Motion to Compel the Deposition of Defendant Cardigan, Inc. ("Defendant" or "Cardigan") employee, Josselin Lopez Cisneros. The Motion is accompanied by a Notice, Amended Notice served on September 19, 2025, a Memorandum of Points and Authorities, and Declaration of Stacia C. Hoogstraal. The motion asserts that on July 15, 2025, Plaintiff noticed the deposition of Cardigan's finance manager, Jhosselin Lopez Cisneros. Two days later, Cardigan's counsel claimed that Ms. Lopez Cisneros was not available, but would make her available during a mutually available date. After meeting and conferring, Cardigan's counsel did not respond to make Ms. Lopez Cisneros available.

Analysis

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

Meet and Confer Requirements

The parties to a discovery dispute are required to meet and confer, a reasonable and good faith attempt, to informally resolve any dispute concerning discovery. See Cal. Code Civ. Proc. §§ 2016.040, 2030.300, *Golf & Tennis Pro Shop, Inc. v. Sup. Ct.* (Frye) (2022) 84 Cal.App.5th 127, 138. In addition to the statutory requirements that obligate counsel to meet and confer on a discovery motion, Contra Costa County Superior Court local rules require the same. See L.R. 2.121(e). Additionally, the Court's local rules states that motions "should be filed sparingly, in good faith and when the issue(s) cannot be otherwise resolved." L.R. 2.122(c).

Here, the record submitted to the Court show that Plaintiff's counsel made two attempts by e-mail to solicit available dates for the deposition of Ms. Lopez Cisneros. Defendant's counsel, Andrew Sterns, did not respond to either attempts to meet and confer.

Motion to Compel Deposition is Warranted

The Court finds that Plaintiffs' notice of deposition and the accompanying request for production of documents are relevant, as the items sought are reasonably calculated to lead to the discovery of admissible evidence. Ms. Lopez Cisneros is the finance manager who presumably has information that will lead to the discovery of admissible evidence.

Cal. Code of Civ. Proc. § 2025.410 states that if the party who served with a deposition notice with an irregularity does not serve a written objection, the party waives any error or irregularity. Section 2023.010(d) makes is a misuse of the discovery process to fail to "respond or to submit to an authorized method of discovery."

Here, Defendant's counsel failed to object to the Notice of Deposition, and failed to respond or submit to the deposition by neglecting to respond to Plaintiff's counsel. Furthermore, Cardigan failed to oppose this motion.

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court finds that Cardigan's failure to timely oppose the Motion to Compel Deposition of Jhosselin Lopez Cisneros is a deemed to be consent to the motion. As such, there is good cause to grant the Motion.

Discovery Referee is Necessary.

This Court maintains a judicial philosophy that discovery motions are overused and should be discouraged unless there is no compliance with the discovery statutes. Before making a motion to

compel, counsel are advised to consider carefully whether doing so is truly worthwhile. “Motions to compel should be considered a last resort when trying to prepare a case for trial.” California Civil Discovery Practice (4th ed Cal CEB) §15.32.C. Additionally, “trial courts generally have little tolerance for discovery motions because of a perception that the parties ought to be able to resolve many, if not most, discovery disputes without judicial intervention. But because legitimate discovery disputes do exist, motions to compel are sometimes justified. If a motion to compel becomes necessary, counsel should understand that busy trial courts will not often be able to spend much time analyzing complex discovery disputes.” California Civil Discovery Practice (4th ed Cal CEB) §15.38.6. Here, Counsel appeared to have met and conferred, but are unable to resolve the discovery disputes before Plaintiff filed its motions.

On motion of a party, stipulation of the parties, or *sua sponte*, a court may appoint a discovery referee to manage and rule on the discovery aspects of a case. See Cal. Code of Civ. Proc. §§639(a)(5), (b)–(d); Cal Rules of Ct 3.920–3.932, *Lu v Superior Court* (1997) 55 Cal.App.4th 1264 (trial court has authority to appoint discovery referee before discovery dispute arises to assist attorneys in creating efficient discovery plan).

The Court finds, in its discretion, that such an appointment of a Discovery Referee is warranted under the circumstances of this case. The Court finds that the multiple discovery motions, the existing disputes raised by the pending discovery motions and nature of underlying legal issues, require discovery reference. Cal. Code of Civ. Proc. Section 639(a)(5) states: “When the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon.”

The Court finds, here, that a discovery referee is necessary to hear and determine all disputes relevant to discovery. The Court makes this finding on the grounds that there are five (5) pending discovery motions on calendar in the matter, scheduled for April 15 and 26, 2026 moving papers to date, without oppositions filed, contain 474 pages of documents. The Court finds that Counsel are unable to effectively meet and confer to arrive an informal resolution of the discovery disputes without intervention of the Court. Accordingly, the parties would benefit from the appointment of a discovery referee.

Based on the foregoing, the Court finds good cause to make the following findings and orders.

Ruling

1. Plaintiff’s Motion to Compel the Deposition of Defendant Cardigan’s Employee, Jhosselin Lopez Cisneros is **granted**. Defendant shall make Ms. Lopez Cisneros available for deposition no later than April 10, 2026 at a time and place designated by Plaintiff’s counsel. The date may be extended by written stipulation of the parties.
2. The deposition of Ms. Lopez Cisneros shall take place from day-to-day, except weekends and court holidays, until completed and shall not start earlier than 9:00 a.m. and shall not end later than 5:00 p.m.
3. The Court appoints a Discovery Referee to hear all discovery motions that are pending, and all further discovery motions filed in this matter.
4. By no later than March 20, 2026, the Parties are ordered to meet and confer pursuant to Cal.

Code of Civ. Proc. § 640(a) or (b) and shall submit a stipulation and proposed order appointing a proposed individual who will serve as a discovery referee to the Court along with the proposed referee's curriculum vitae and fee schedule.

5. If the Parties are unable to jointly agree to a proposed Discovery Referee by March 20, 2026, the Parties each shall submit the name of one proposed Discovery Referee and fee schedule along with his/her/their *curriculum vitae* to the Court by letter, e-mailed to dept16@contracosta.courts.ca.gov by Monday, March 30, 2026. The Court will select one of the proposed referees by unreported minute order.
6. The Discovery Referee will be requested to sign the Judicial Council ADR-110 form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 form.
7. No party has established an economic inability to pay a pro rata share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split 50/50 between the parties. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to all discovery motions referred to the Discovery Referee.
8. The Court orders that that the following motions are **vacated** and referred to the Discovery Referee. The clerk of the court shall vacate the following hearings:
 - April 15, 2026: Plaintiff's Motion to Compel Further Responses from Defendant Cardigan Inc. to Form Interrogatories, Set One.
 - April 15, 2026: Plaintiff's Motion to Compel Further Responses from Defendant Cardigan, Inc. to Form Interrogatories, Set Two.
 - April 15, 2026: Plaintiff's Motion to Compel Further Responses from Defendant Cardigan, Inc. to Form Interrogatories, Set Three.
 - April 22, 2026: Plaintiff's Motion to Compel Further Responses from Defendant Cardigan, Inc. to Request for Production of Documents, Set One
 - April 22, 2026: Plaintiff's Motion to Compel Further Responses from Defendant Cardigan, Inc. to Special Interrogatories, Set One.
9. Plaintiff's counsel shall prepare and e-file a proposed order conforming to the foregoing no later than ten (10) days from the date of order and shall attach a copy of this tentative ruling.
10. The Parties are ordered to meet and confer to take all necessary and appropriate action to effectuate and implement the foregoing orders.